

Phool Singh v. State of U.P.

Allahabad High Court · Division Bench · 28 July 2025 · 2025:AHC:123572-DB · Writ-C No. 22170 of 2025 · **Writ disposed of; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill and recovery certificate is to be pursued as an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If such an application is filed within two weeks, the authorities shall grant a hearing and pass a reasoned order in accordance with law within six weeks of filing.

FACTUAL SUMMARY

Phool Singh petitioned the Allahabad High Court against an electricity bill and a recovery certificate issued by Dakshinanchal Vidyut Vitran Nigam Ltd. A supplementary affidavit filed at the hearing was taken on record. Counsel for the petitioner and for the distribution company (respondent Nos. 3 and 4) were heard. The Court did not examine the correctness of the bill or the recovery and treated the matter as a billing dispute to be raised under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

A consumer challenging an electricity bill and recovery certificate in writ should file the challenge under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If that application is made within two weeks, the authorities shall grant a hearing and thereafter pass a reasoned order in accordance with law within six weeks of filing. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY BILL AND RECOVERY CERTIFICATE

The Court did not examine the bill or recovery and relegated the petitioner to Clause 6.5. ¶ 3-4